

HAMPTON v. EAST BAY MUNICIPAL UTILITY DISTRICT

22CV46329

DEFENSE MOTION FOR SUMMARY JUDGMENT

This is a personal injury action. Plaintiff generally alleges that while recreating along the south shore of Lake Camanche, near the Arrowhead campground, he dove into the water from a rock wall and struck a submerged boulder, resulting in quadriplegia.

Before the Court is a motion for summary judgment. Co-defendant Urban Park Concessionaires (“UPC”) contends that it is entitled to summary judgment/adjudication because neither of the two causes of action stated in the operative First Amended Complaint (negligence and premises liability) can succeed against it. According to UPC, it did not owe plaintiff any duty of care to protect him from injuries caused by diving into a submerged boulder because:

1. UPC had no control over the water level in the lake, and thus had no ability to warn or guard against a boulder that became invisible;
2. Plaintiff’s injury was the result of a volitional act of diving into unfamiliar waters and colliding with an open and obvious danger; and/or
3. Plaintiff’s injury was the result of an inherent/unavoidable risk associated with shallow-water diving, and UPC did nothing to increase that risk.

As noted in the recent ruling regarding EBMUD’s demurrer to the same pleading, there is evidence referenced by plaintiff that this Court has yet to actually see, to wit: evidence that someone actually placed the boulders at the base of the rock wall. This evidence would negate both the natural condition immunity (not relevant for this motion) but more importantly would be evidence of someone having increased the risk of injury associated with diving. While defendants focus on many “comparative fault” factors that may impact plaintiff’s recovery, the focus here needs to be on who performed the subsequent remedial measure (the “no diving” sign) and who put the boulder along the edge of the lake. This is an important observation since plaintiff asks this Court for additional time to marshal evidence of these things, the representation being that the evidence exists but has yet to be uncovered.

If it appears from the evidence submitted in opposition to a motion for summary judgment “that facts essential to justify opposition may exist but cannot, for reasons stated, then be presented,” this court must either deny, or continue, the motion. (CCP §437c(h).) The purpose of this provision is to mitigate the harshness of summary judgment for a party who has not had the opportunity to marshal evidence to oppose the motion. (*Cooksey v. Alexakis* (2004) 123 Cal.App.4th 246, 253.) Although plaintiff has not provided enough information by which to secure a mandatory continuance (see *Lerma v. County of Orange* (2004) 120 Cal.App.4th 709, 715), plaintiff’s failure to meet

the requirements of sub (h) for a *mandatory* continuance does not preclude application of this Court's inherent authority to grant a continuance of the hearing for good cause. (*Wachs v. Curry* (1993) 13 Cal.App.4th 616, 624.) Courts analyzing requests for continuances for cause look to CRC 3.1332 for guidance. (*Cotton v. StarCare Medical Group, Inc.* (2010) 183 Cal.App.4th 437, 444.) Pursuant thereto, circumstances indicating good cause include the interests of justice. (*id* at 3.1332(d)(10).) As noted by the court in *Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 398–399: “Judges are faced with opposing responsibilities when continuances for the hearing of summary judgment motions are sought. On the one hand, they are mandated by the Trial Court Delay Reduction Act to actively assume and maintain control over the pace of litigation. On the other hand, they must abide by the guiding principle of deciding cases on their merits rather than on procedural deficiencies. Such decisions must be made in an atmosphere of substantial justice. When the two policies collide head-on, the strong public policy favoring disposition on the merits outweighs the competing policy favoring judicial efficiency.” (See *Futrell v. Payday California, Inc.* (2010) 190 Cal.App.4th 1419, 1438.)

In an abundance of caution, and noting there is no pending trial date, this Court will continue the hearing on this motion to permit plaintiff additional time to seek the evidence needed to address any duty to warn for open and obvious conditions, UPC's control over the water's edge, and increasing the risk by placing the boulder. Defendants are ordered to cooperate with any additional discovery plaintiff seeks. The continued hearing shall take place on August 18, 2023, at 9:00 a.m. in Dept. 2. Any supplemental papers that plaintiff wishes this Court to consider must be filed and served at least 12 court days prior thereto. Any responsive papers by the defense must be filed and served at least 6 court days prior thereto.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.